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General Knowledge

Indian Polity

STUDY NOTES

Local-self Government - Urban Local Bodies

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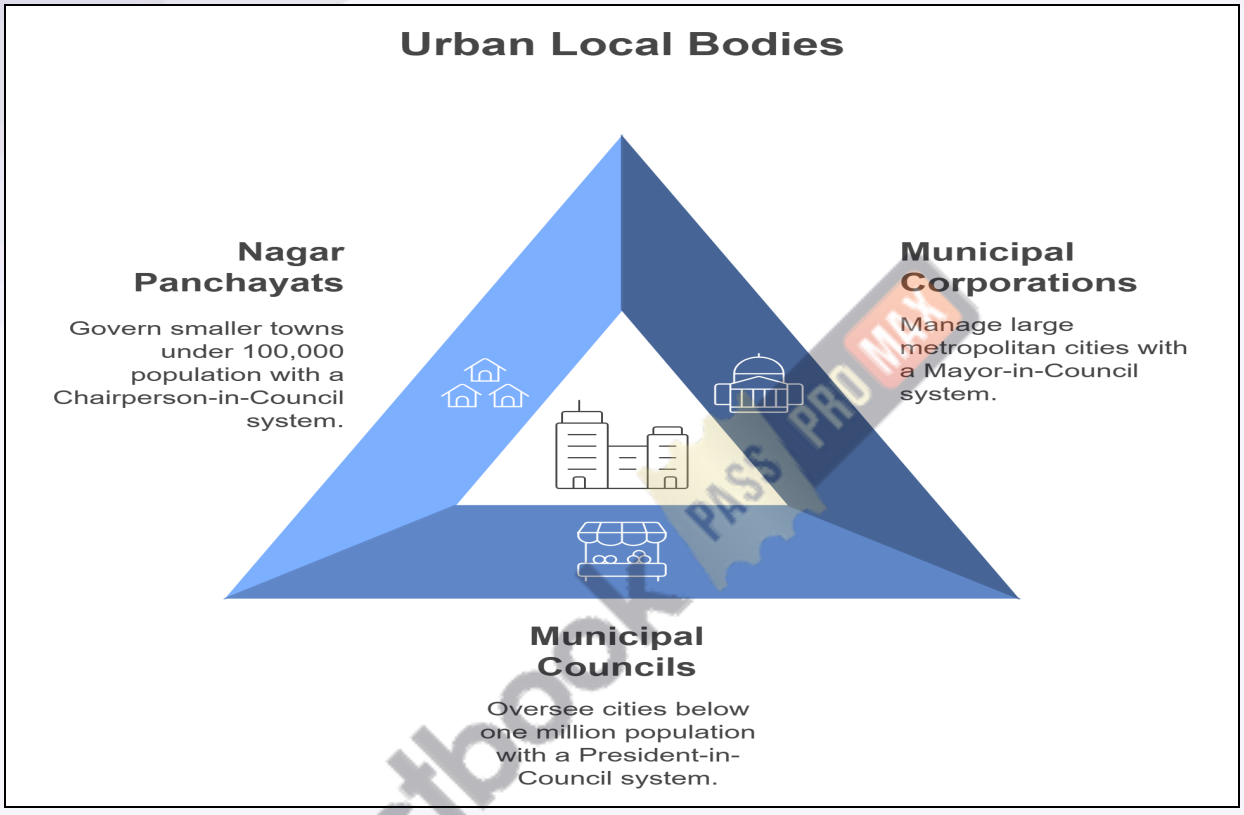
Historical background

- **Ancient Times**: The concept of **urban local governance** has ancient roots in India, where cities were often managed by **councils** or **committees of local citizens** responsible for maintaining order, overseeing trade, and providing **public services** like **water supply** and **waste management**.
- **British Era**: During the **colonial period**, the British introduced a system of **local self-government**, with **elected municipal councils** managing urban areas. The first **municipal corporation** in India was established in **Madras (now Chennai)** in **1688**.
- **Post-Independence**: After **independence**, the system of **local self-government** continued, with modifications. The **74th Amendment to the Constitution (1992)** formally recognized **urban local bodies** as a tier of government, enabling their establishment and functioning under laws created by **state governments**.
- **Present-Day Functions**: **Urban local bodies (ULBs)** in India today manage several critical functions, including **planning**, **solid waste management**, **water supply**, and

transportation. They play an integral role in **urban development** and improving citizens' **quality of life**.

Structure of Urban Local Governance in India



- **Municipal Corporations**: These are the largest **urban local bodies (ULBs)** managing **metropolitan cities** with populations exceeding one million. They operate under a **Mayor-in-Council system**, with a **Mayor** as the head and a **Deputy Mayor** assisting.
- **Municipal Councils**: These are intermediate **ULBs** overseeing cities with populations below one million. They follow a **President-in-Council system**, with a **President** as the head and a **Vice-President** to assist.
- **Nagar Panchayats**: These are smaller **ULBs** managing towns with populations under 100,000. They operate under a **Chairperson-in-Council system**, where a **Chairperson** heads the body, with a **Vice-Chairperson** assisting.

Types of Urban Local Bodies

- **Municipal Corporation**: Typically found in **large cities** like **Bangalore**, **Delhi**, **Mumbai**, **Kolkata**, and others, **municipal corporations** manage the civic affairs of these **metropolitan areas**.

- **Municipality**: **Smaller cities** are governed by **municipalities**, which may be referred to by various names such as **municipal councils**, **municipal committees**, or **municipal boards**.
- **Notified Area Committee**: This type of committee is established for **rapidly developing towns** or areas lacking essential infrastructure. All members of the **Notified Area Committee** are **nominated by the state government**.
- **Town Area Committee**: Found in **smaller towns**, this committee has limited powers, mainly overseeing functions like **street lighting**, **drainage**, **road maintenance**, and **conservancy**.
- **Cantonment Board**: Set up for civilian populations residing in **cantonment areas**, these boards are established and managed by the **central government**.
- **Township**: A form of **urban governance** that provides basic facilities to staff and workers living in **colonies near industrial plants**. **Townships** have no **elected members** and function as an extension of the **bureaucratic structure**.
- **Port Trust**: Established in **port cities** like **Mumbai**, **Chennai**, and **Kolkata**, **port trusts** manage **port operations** and provide **civic amenities** to residents in the vicinity of the port area.
- **Special Purpose Agency**: These agencies are responsible for carrying out specific functions or activities that fall under the jurisdiction of **municipal corporations** or **municipalities**, addressing particular needs or projects.

The constitutional and legal provisions

- **Part IXA and 12th Schedule of the Constitution of India**: This part of the Constitution outlines provisions for the establishment and functioning of **municipalities** at the **district** and **metropolitan levels**.
- **State Municipal Acts**: Each state has its own **Municipal Act** that sets the legal framework for **ULBs**, detailing their structure, functions, powers, and financing.
- **The Metro Railways (Construction of Works) Act, 1978**: This Act facilitates the construction and operation of **rapid transit systems** in **metropolitan cities** and establishes the **Metro Railways Administration** for oversight.

Important article

Article	Description
Article 243-P	Composition of municipalities
Article 243-Q	Reservation of seats for scheduled castes and scheduled tribes in municipalities
Article 243-R	Duration of municipalities
Article 243-S	Dissolution of municipalities
Article 243-T	Powers, authority, and responsibilities of municipalities
Article 243-U	Functions of municipalities
Article 243-V	Constitution of state finance commissions to review the financial position of municipalities

Challenges

- **Limited Financial Resources**: **ULBs** face challenges in raising funds due to restricted **tax collection powers** and low **revenue generation** in many urban areas.
- **Lack of Autonomy**: The limited **decision-making power** of **ULBs**, along with their dependence on **state governments** for administrative and financial support, restricts their ability to address citizens' needs effectively.
- **Parallel Bodies**: In some states, confusion exists between the functions of **ULBs** and other **parastatal bodies**, which makes governance less accessible and effective for citizens.
- **Limited Human Resources**: **ULBs** often lack skilled personnel, hindering their ability to manage **services** and **infrastructure** effectively.

- **Poor Infrastructure**: Many **ULBs** struggle with inadequate **infrastructure**, including **roads**, **water supply**, and **sewage systems**, limiting their ability to provide essential services.
- **Political Interference**: **Political influence** often interferes with the functioning of **ULBs**, affecting their impartiality and decision-making processes.
- **Limited Public Participation**: **ULBs** frequently lack effective **public participation** in decision-making, reducing their accountability and responsiveness to community needs.
- **Lack of Capacity**: **ULBs** often lack the resources and skills necessary to plan, implement, and monitor **development projects**, leading to inefficiencies and wasted resources.

Strengths

- **Decentralization of Powers**: **ULBs** should be granted more **autonomy** and decision-making powers in areas like **planning**, **financing**, and **service delivery** to better meet citizens' needs.
- **Improved Financial Management**: Adequate **financial support**, including **grants** and **loans**, should be provided to **ULBs** to enable them to effectively deliver essential services.
- **Capacity Building**: **ULBs** should receive training in areas such as **financial management**, **planning**, and **service delivery** to enhance their operational effectiveness.
- **Improved Transparency and Accountability**: **ULBs** must be made more accountable through transparent practices, such as **open data initiatives** and **citizen engagement platforms**.
- **Enhanced Collaboration**: **ULBs** should collaborate with higher levels of government, the **private sector**, and **civil society** to address the challenges faced by their communities.
- **Increased Public Participation**: Mechanisms like **town hall meetings** and **citizen advisory boards** should be established to ensure that the voices of residents are heard and their needs addressed.
- **Improved Infrastructure and Services**: Investment in **infrastructure**, including **transportation**, **water**, and **sanitation**, should be prioritized to make urban areas more livable and efficient.

Successful urban local bodies

- **Ahmedabad Municipal Corporation (AMC)**: Introduced innovative initiatives like **Ahmedabad Janmarg Limited (AJL)**, a **public-private partnership** that operates **bus rapid transit corridors**.
- **Pune Municipal Corporation (PMC)**: Known for its effective **waste management practices**, including **door-to-door waste collection** and the establishment of a **waste segregation and processing facility**.
- **Surat Municipal Corporation (SMC)**: Leveraged **technology** to track **infrastructure projects** and manage emergencies through a **centralized control room**. The city also developed **pedestrian-friendly streets** and **public parks**.